ELECTRICAL SUBCONTRACT AGREEMENT

This Electrical Subcontract Agreement (this "Subcontract") is made and entered into as of February 2, 2026 (the "Effective Date"), by and between **Mesa Verde Contractors, Inc.**, a California corporation, California Contractors State License Board License No. 1047782 (Class B), with its principal office at 2150 Rancho Conejo Parkway, Suite 310, Thousand Oaks, California 91320 ("Contractor"), and **Lumen Electric Corp.**, a California corporation, California Contractors State License Board License No. 1093316 (Class C-10), with its principal office at 488 Durley Avenue, Camarillo, California 93010 ("Subcontractor").

Contractor has entered into a prime contract (the "Prime Contract") with **Ventura County Credit Union** ("Owner") for the construction of the project known as the **Oxnard Branch Remodel**, located at 1840 Saviers Road, Oxnard, California 93033 (the "Project"). The architect of record for the Project is Harbor Line Architects, LLP (the "Architect").

Contractor wishes to engage Subcontractor to perform the electrical work for the Project, and Subcontractor wishes to perform that work, on the terms stated in this Subcontract. The parties therefore agree as follows.

ARTICLE 1 — DEFINITIONS

1.1 "Subcontract Work" means all labor, supervision, materials, equipment, tools, transportation, permits, testing and services required to complete the electrical scope described in Article 3, together with all work reasonably inferable from the Subcontract Documents as necessary to produce the intended result.

1.2 "Subcontract Documents" means the documents listed in Article 2.

1.3 "Substantial Completion" has the meaning given in the Prime Contract. "Final Completion" means the point at which the Subcontract Work is fully complete, including all punch list items, closeout submittals, as-built drawings, operation and maintenance manuals and warranties, and has been accepted by Contractor and Owner.

1.4 "Application for Payment" means Subcontractor's monthly request for payment submitted under Article 7.

1.5 "Backcharge" means any cost, expense or damage incurred by Contractor that is attributable to Subcontractor's acts, omissions, defective work, delay or breach of this Subcontract, including Contractor's reasonable overhead on that cost.

1.6 Capitalized terms used but not defined in this Subcontract have the meanings given in the Prime Contract.

ARTICLE 2 — SUBCONTRACT DOCUMENTS

2.1 The Subcontract Documents consist of: (a) this Subcontract, including Exhibit C and the Schedule of Values exhibit attached to it; (b) the Prime Contract, to the extent it relates to the Subcontract Work; (c) the Project drawings prepared by the Architect and its electrical engineer, Sheet Series E-0.0 through E-6.2, dated November 14, 2025, as revised by Addendum No. 1 and Addendum No. 2; (d) the Project Manual, including Division 01 (General Requirements) and Division 26 (Electrical), including without limitation Sections 26 05 00, 26 05 19, 26 05 26, 26 05 33, 26 09 23, 26 24 16, 26 27 26, 26 51 00 and 26 56 00, and Sections 27 05 28 and 28 31 11 as they relate to pathways and fire alarm modifications; and (e) any written modifications issued after the Effective Date under Article 11.

2.2 Subcontractor assumes toward Contractor all obligations that Contractor assumes toward Owner under the Prime Contract, to the extent those obligations relate to the Subcontract Work. Contractor shall have the same

rights and remedies against Subcontractor that Owner has against Contractor, to the extent they relate to the Subcontract Work.

2.3 In case of conflict among the Subcontract Documents, the more stringent requirement governs, and this Subcontract controls over the Prime Contract on matters of payment between Contractor and Subcontractor.

2.4 Subcontractor acknowledges that it has reviewed the Subcontract Documents, visited the Project site, and is familiar with existing conditions at the occupied branch facility.

ARTICLE 3 — SCOPE OF SUBCONTRACT WORK

3.1 Subcontractor shall furnish and install a complete electrical system for the Project in accordance with the Subcontract Documents, including:

(a) demolition, disconnection and make-safe of existing electrical systems in remodel areas; (b) temporary power and temporary lighting for all trades during construction; (c) modifications to the existing main service switchboard and installation of new distribution and branch panelboards; (d) feeders, branch circuits, raceways, boxes, wiring and grounding; (e) interior and exterior lighting fixtures, emergency lighting and exit signage; (f) networked lighting controls, occupancy sensors and daylight harvesting; (g) empty conduit, back boxes and pull strings for data, security, teller line and ATM systems; (h) relocation and extension of fire alarm devices within the existing system, coordinated with Owner's fire alarm monitoring vendor; and (i) wiring devices, trim, labeling, testing, startup and commissioning support.

3.2 Subcontractor shall perform the Subcontract Work in phases that keep the branch's vault, teller line and ATM operational during business hours, as set out in the Contractor's phasing plan. Any power shutdown requires seventy-two (72) hours' written notice to Contractor and must occur outside Owner's business hours.

3.3 The following are excluded from the Subcontract Work: low-voltage cabling and terminations for data and security; furnishing of ATM and teller equipment; and utility company charges for service modifications, which Owner will pay directly.

ARTICLE 4 — SUBCONTRACT SUM

4.1 Contractor shall pay Subcontractor for the full and proper performance of the Subcontract Work the fixed sum of **Three Hundred Eighty-Five Thousand Dollars ($385,000.00)** (the "Subcontract Sum"), subject to additions and deductions by written change order under Article 11.

4.2 The Subcontract Sum includes all applicable sales and use taxes, permit fees, prevailing costs of labor and materials, overhead and profit.

4.3 The Subcontract Sum is allocated among the line items shown in the Schedule of Values exhibit. That allocation is used solely to evaluate Applications for Payment and does not limit Subcontractor's obligation to complete all of the Subcontract Work for the Subcontract Sum.

ARTICLE 5 — TIME AND SCHEDULE

5.1 Subcontractor shall mobilize within five (5) working days after written notice from Contractor and shall perform the Subcontract Work in accordance with Contractor's Project schedule, as updated from time to time.

Fictional contract generated for the Groundwork demo. Not legal advice. No real parties.

5.2 Time is of the essence. Subcontractor shall furnish sufficient labor, materials and supervision to maintain the schedule and shall attend weekly coordination meetings.

5.3 Subcontractor shall submit all Division 26 submittals within fifteen (15) calendar days after the Effective Date. Subcontractor shall identify long-lead items, including switchboard components and lighting control equipment, and shall release those orders promptly upon approval.

5.4 If Subcontractor is delayed by causes beyond its control and without its fault, it shall be entitled to an extension of time only to the extent Contractor obtains a corresponding extension from Owner, and only if Subcontractor gives written notice of the delay within five (5) calendar days after the delay begins.

ARTICLE 6 — RETENTION

6.1 Contractor will withhold retention from each progress payment at the rate stated in Exhibit C. Retention is calculated on the value of the Subcontract Work completed, as approved under Article 7.

6.2 Contractor shall release all retention held under this Subcontract to Subcontractor within ten (10) days after both of the following have occurred: (a) Final Completion of the Subcontract Work; and (b) Contractor's receipt of retention from Owner.

6.3 As a condition of release, Subcontractor shall deliver the closeout items required by Article 10 and the waivers required by Article 8.

6.4 If a good faith dispute exists between Contractor and Subcontractor at the time retention would otherwise be released, Contractor may continue to withhold, from the retention otherwise payable, an amount not exceeding one hundred fifty percent (150%) of the disputed amount until the dispute is resolved, and shall release the balance as provided in Section 6.2.

ARTICLE 7 — PROGRESS PAYMENTS

7.1 On or before the twenty-fifth (25th) day of each month, Subcontractor shall submit to Contractor an Application for Payment covering Subcontract Work performed through the end of that month, itemized according to the Schedule of Values and in the format Contractor reasonably requires. Applications received late may be held for inclusion in the following month's application to Owner.

7.2 Contractor shall include the approved portion of each Application for Payment in Contractor's next payment application to Owner.

7.3 **Contractor shall pay Subcontractor the approved amount of each Application for Payment, less retention and any amounts withheld under Article 9, within seven (7) days after Contractor receives payment from Owner for that Subcontract Work.** The parties agree in writing that Contractor's receipt of payment from Owner fixes the time at which payment to Subcontractor becomes due. This Section is a pay-when-paid provision regulating the timing of payment. It is not a condition precedent to Contractor's obligation to pay, and it does not shift to Subcontractor the risk of Owner's nonpayment.

7.4 **Contractor will not pay for materials or equipment stored on or off the Project site that have not been incorporated into the Work.** Applications for Payment shall include only labor performed and materials and equipment installed in place. Subcontractor bears all risk of loss for its materials and equipment until they are incorporated into the Work.

7.5 Payment of any Application for Payment is not acceptance of defective or nonconforming Subcontract Work and does not waive any of Contractor's rights.

7.6 Subcontractor shall promptly pay its own sub-subcontractors, suppliers and laborers from the funds it receives under this Subcontract, and shall pay them within the time required by California law.

ARTICLE 8 — LIEN RELEASES AND PAYMENT WAIVERS

8.1 **With each Application for Payment, Subcontractor shall deliver a conditional waiver and release on progress payment covering the amount requested.** The conditional waiver takes effect only upon Subcontractor's receipt of the payment it describes.

8.2 **Within five (5) days after receiving each progress payment, Subcontractor shall deliver an unconditional waiver and release on progress payment for the amount actually received.** Contractor may withhold the next progress payment until the unconditional waiver for the prior payment has been delivered.

8.3 **Subcontractor shall also obtain and deliver corresponding conditional and unconditional waivers from each of its lower-tier sub-subcontractors and material suppliers** whose work or materials are included in the Application for Payment or covered by the payment received, in each case for the amount attributable to that lower-tier party.

8.4 **All waivers and releases delivered under this Subcontract, including those from lower-tier parties, shall be in the statutory forms prescribed by California Civil Code Sections 8132, 8134, 8136 and 8138, as applicable.** Contractor will not accept modified, non-statutory or supplemented waiver forms.

8.5 Upon final payment, Subcontractor shall deliver a conditional waiver and release on final payment with its final Application for Payment, and an unconditional waiver and release on final payment after receipt of final payment, together with the same final waivers from each lower-tier party.

8.6 Subcontractor shall keep the Project and Owner's property free of mechanics' liens, stop payment notices and payment bond claims arising from the Subcontract Work. If any such lien, notice or claim is recorded or served, Subcontractor shall cause it to be released or bonded around within ten (10) days after written demand.

ARTICLE 9 — BACKCHARGES, SETOFF AND WITHHOLDING

9.1 **Contractor may set off against any amount otherwise due to Subcontractor under this Subcontract the amount of any Backcharge.** Contractor shall give Subcontractor written notice of each Backcharge, with reasonable supporting documentation, before or at the time the setoff is taken.

9.2 Backcharges include, without limitation, the cost of cleanup Subcontractor fails to perform within twenty-four (24) hours after notice, damage to the work of other trades or to Owner's property, costs of supplementing Subcontractor's workforce under Article 15, and liquidated damages assessed by Owner to the extent caused by Subcontractor.

9.3 **Contractor may withhold from any payment an amount sufficient to cover the cost of correcting Subcontract Work that is defective or does not conform to the Subcontract Documents,** until the defective or nonconforming work has been corrected to the satisfaction of Contractor and the Architect.

9.4 Contractor may also withhold payment, to the extent reasonably necessary to protect Contractor, on account of: (a) unreleased liens or stop payment notices arising from the Subcontract Work; (b) Subcontractor's failure

to pay its lower-tier parties; (c) Subcontractor's failure to deliver waivers required by Article 8; or (d) reasonable evidence that the Subcontract Work cannot be completed for the unpaid balance of the Subcontract Sum.

9.5 When the grounds for withholding are removed, Contractor shall pay the amount withheld with the next regular progress payment.

ARTICLE 10 — FINAL PAYMENT

10.1 Upon Final Completion, Subcontractor shall submit a final Application for Payment together with: (a) as-built drawings marked to show all field changes and concealed conduit routing; (b) operation and maintenance manuals; (c) manufacturer and Subcontractor warranties; (d) test reports for feeders, grounding, emergency lighting and lighting controls; (e) final inspection sign-off from the City of Oxnard Building and Safety Division; and (f) the final waivers required by Section 8.5.

10.2 Contractor shall pay the balance of the Subcontract Sum, other than retention, within seven (7) days after Contractor receives payment from Owner for that balance. Retention shall be released as provided in Article 6.

10.3 Acceptance of final payment by Subcontractor waives all claims by Subcontractor except those previously made in writing and identified as unsettled at the time of the final Application for Payment.

ARTICLE 11 — CHANGES

11.1 Contractor may, without invalidating this Subcontract, order additions, deletions or other changes in the Subcontract Work. Subcontractor shall not perform any change without a written change order or written construction change directive signed by Contractor's project manager.

11.2 Subcontractor shall submit a priced change proposal, itemized by labor hours, labor rates, material quantities and unit costs, within seven (7) calendar days after Contractor's request. Markup for overhead and profit on changed work shall not exceed ten percent (10%) on Subcontractor's own work and five percent (5%) on lower-tier work.

11.3 Subcontractor shall give written notice of any claim for additional time or compensation within seven (7) calendar days after the event giving rise to the claim. Claims not timely noticed are waived to the extent Contractor is prejudiced by the delay.

11.4 Where a change arises from an Owner-directed change, Subcontractor's entitlement shall be limited to the amount Contractor recovers from Owner on Subcontractor's behalf, less Contractor's reasonable costs of pursuing that recovery.

ARTICLE 12 — INSURANCE AND INDEMNITY

12.1 Before starting work, Subcontractor shall furnish certificates of insurance and endorsements showing: commercial general liability coverage of not less than $2,000,000 per occurrence and $4,000,000 aggregate; business automobile liability of not less than $1,000,000 combined single limit; workers' compensation at statutory limits with employer's liability of not less than $1,000,000; and umbrella liability of not less than $5,000,000.

12.2 Contractor, Owner and the Architect shall be named as additional insureds on Subcontractor's general liability, automobile and umbrella policies on a primary and non-contributory basis, using ongoing and completed

operations endorsements. Subcontractor's policies shall include a waiver of subrogation in favor of the additional insureds.

12.3 To the fullest extent permitted by law, including California Civil Code Section 2782.05, Subcontractor shall defend, indemnify and hold harmless Contractor, Owner and their officers, employees and agents from claims, damages, losses and expenses, including attorneys' fees, arising out of or resulting from the performance of the Subcontract Work, to the extent caused by the negligence, recklessness or willful misconduct of Subcontractor or anyone for whom Subcontractor is responsible. Subcontractor shall not be obligated to indemnify any party for claims arising from that party's active negligence or willful misconduct, or for defects in design furnished by others.

ARTICLE 13 — WARRANTY AND CORRECTION OF WORK

13.1 Subcontractor warrants that all materials and equipment furnished will be new and of the specified quality, and that the Subcontract Work will be free from defects and will conform to the Subcontract Documents.

13.2 Subcontractor shall correct any defective or nonconforming Subcontract Work discovered within one (1) year after Substantial Completion of the Project, or within any longer period required by the Subcontract Documents, within five (5) working days after written notice, or immediately in the case of an emergency affecting branch operations or life safety.

13.3 If Subcontractor fails to correct defective work within the time required, Contractor may correct it and recover the cost from Subcontractor as a Backcharge under Article 9.

13.4 Subcontractor shall assign to Owner, at Final Completion, all manufacturer warranties for equipment it furnishes.

ARTICLE 14 — SAFETY, PERMITS AND COMPLIANCE WITH LAWS

14.1 Subcontractor shall comply with Cal/OSHA regulations, Contractor's site-specific safety program and the National Fire Protection Association Standard for Electrical Safety in the Workplace. Subcontractor shall follow lockout/tagout procedures for all de-energized work and shall not perform energized work without Contractor's written approval of an energized work permit.

14.2 Subcontractor shall obtain and pay for the electrical permit and all required inspections for the Subcontract Work, and shall coordinate with Southern California Edison for any service work.

14.3 Subcontractor shall maintain its C-10 license in good standing throughout performance and shall employ certified electricians as required by the California Labor Code.

14.4 Subcontractor shall comply with Owner's security procedures at the branch, including escort requirements near the vault and teller areas and background screening of workers where Owner requires it.

ARTICLE 15 — DEFAULT AND TERMINATION

15.1 If Subcontractor fails to supply sufficient skilled workers or proper materials, fails to maintain the schedule, fails to pay its lower-tier parties, disregards applicable laws or Contractor's instructions, or otherwise materially breaches this Subcontract, and does not begin and diligently pursue a cure within three (3) working days after

written notice, Contractor may supplement Subcontractor's forces or terminate this Subcontract in whole or in part.

15.2 Upon termination for default, Contractor may take possession of materials on site intended for the Subcontract Work and complete the work by any reasonable means. Subcontractor shall not receive further payment until the work is complete. If Contractor's cost to complete exceeds the unpaid balance of the Subcontract Sum, Subcontractor shall pay the difference.

15.3 Contractor may terminate this Subcontract for convenience upon written notice, in which case Subcontractor shall be paid for Subcontract Work properly performed through the termination date, plus reasonable demobilization costs, but not anticipated profit on unperformed work.

15.4 If Owner terminates the Prime Contract, Contractor may terminate this Subcontract on the same terms, and Subcontractor's recovery shall be limited to the amount Contractor recovers from Owner on account of the Subcontract Work.

ARTICLE 16 — DISPUTES

16.1 The parties shall first attempt in good faith to resolve any dispute by meeting at the project manager level, and then at the executive level, within fourteen (14) days after written notice of the dispute.

16.2 Disputes that involve Owner and that are subject to the dispute resolution procedures of the Prime Contract shall be resolved under those procedures, and Subcontractor agrees to be bound by the result to the same extent as Contractor.

16.3 Any other dispute not resolved under Section 16.1 shall be submitted to non-binding mediation in Ventura County, California, before either party files suit. The parties shall share the mediator's fees equally.

16.4 Pending resolution of any dispute, Subcontractor shall continue to perform the Subcontract Work, and Contractor shall continue to pay undisputed amounts as they become due.

ARTICLE 17 — GOVERNING LAW AND GENERAL PROVISIONS

17.1 This Subcontract is governed by the laws of the State of California. Venue for any action shall be the Superior Court of California, County of Ventura.

17.2 Subcontractor shall not assign this Subcontract or subcontract any substantial portion of the Subcontract Work without Contractor's prior written consent.

17.3 Notices shall be in writing and delivered by hand, by overnight courier or by email with confirmation of transmission, to the addresses stated in the preamble or such other address as a party designates by notice.

17.4 This Subcontract, including its exhibits, is the entire agreement of the parties on its subject matter and supersedes all prior proposals, bids and understandings. It may be amended only by a writing signed by both parties.

17.5 If any provision of this Subcontract is held unenforceable, the remaining provisions remain in effect, and the unenforceable provision shall be enforced to the maximum extent permitted by law.

17.6 No waiver of any breach is a waiver of any other or later breach. Contractor's rights and remedies under this Subcontract are cumulative.

17.7 In any action to enforce this Subcontract, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs.

IN WITNESS WHEREOF, the parties have executed this Subcontract as of the Effective Date by their duly authorized representatives.

MESA VERDE CONTRACTORS, INC. By: _____ Name: Daniel R. Okafor Title: Vice President, Operations Date: _____

LUMEN ELECTRIC CORP. By: _____ Name: Teresa M. Villanueva Title: President Date: _____

EXHIBIT C — PAYMENT TERMS

Term	Provision
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Retention rate	5%
Application for Payment deadline	25th day of each month
Progress payment due	Within 7 days after Contractor's receipt of payment from Owner
Retention release	Within 10 days after Final Completion of the Subcontract Work and Contractor's receipt of retention from Owner
Stored materials	Not payable until incorporated into the Work
Waiver forms	**California statutory forms only; lower-tier waivers required**

EXHIBIT — SCHEDULE OF VALUES

Line	Description	Value
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1	Mobilization, submittals and permits	$14,500.00
2	Demolition and make-safe of existing systems	$21,000.00

3	Temporary power and lighting	$9,500.00
4	Main service switchboard modifications	$46,000.00
5	Panelboards and feeders	$52,500.00
6	Branch circuit rough-in (raceway, boxes, wire)	$68,000.00
7	Lighting fixtures, emergency and exit lighting	$74,000.00
8	Networked lighting controls and sensors	$26,500.00
9	Pathways for data, security, teller line and ATM	$18,000.00
10	Fire alarm device relocation and extension	$22,000.00
11	Wiring devices, trim and labeling	$19,500.00
12	Testing, commissioning support and closeout	$13,500.00
	****Subcontract Sum****	****$385,000.00****